

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Michael Acampora	Team: Team # 6	CCRB Case #: 201310676	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 11/12/2013 6:15 PM	Location of Incident: § 87(2)(b)	Precinct: 62	18 Mo. SOL 5/12/2015	EO SOL 5/12/2015	
Date/Time CV Reported Tue, 11/12/2013 9:43 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 11/12/2013 9:45 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Daniel Guida	00373	941862	NARCBBS

Officer(s)	Allegation	Investigator Recommendation
A.DT3 Daniel Guida	Abuse: Det. Daniel Guida entered and searched § 87(2)(b) in Brooklyn.	§ 87(2)(b)
B.DT3 Daniel Guida	Abuse: Det. Daniel Guida refused to provide his name and shield number to § 87(2)(b)	§ 87(2)(b)

Case Summary

On November 12, 2013, § 87(2)(b) filed this complaint with the CCRB via the online website (encl. 5A-5C).

On November 12, 2013, at approximately 6:15 p.m., § 87(2)(b) was inside his home at § 87(2)(b) in Brooklyn, when Det. Daniel Guida of the Narcotics Borough Brooklyn South arrived at the premises. As a result, the following allegations occurred:

- **Allegation A—Abuse of Authority: Det. Daniel Guida entered and searched § 87(2)(b) in Brooklyn.**
§ 87(2)(g)
- **Allegation B—Abuse of Authority: Det. Daniel Guida refused to provide his name and shield number to § 87(2)(b)**
§ 87(2)(g)

§ 87(2)(b)'s son, § 87(2)(b) was arrested during the incident. As a result, this case was not eligible for mediation.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) on the date of the incident, § 87(2)(b) is a white male who is 6'2", 270 lbs., with brown hair and brown eyes. § 87(2)(b)

CCRB Statement

On December 12, 2013, § 87(2)(b) was interviewed at the CCRB (encl. 7A-7C). His statement is summarized below.

On November 12, 2013, at approximately 6:15 p.m., § 87(2)(b) was inside his home at § 87(2)(b) in Brooklyn. § 87(2)(b) ordered dinner and his son, § 87(2)(b) came in to the house for a minute. § 87(2)(b) told § 87(2)(b) that he was going to tell his friend that he was not going to hang out with him and went back outside to do so. § 87(2)(b) went into his first floor bedroom. § 87(2)(b)'s apartment has double doors in front that open to two more double doors four feet away. One door leads to stairs to the second floor (the only way to access that floor), the other door leads to his room and § 87(2)(b)'s room. § 87(2)(b) was in his bedroom (the second room back on the first floor). His door was shut but not locked.

Minutes later, § 87(2)(b) heard a commotion upstairs. He did not hear anyone walk into his home or go upstairs before the commotion. § 87(2)(b) described the commotion as

the sounds of footsteps and people raising their voices. He could not make out what was being said.

§ 87(2)(b) went into his first floor hallway and saw that his front door was still locked. § 87(2)(b) opened a door to the second floor stairs and shouted three or four times, “What’s going on? I’m trying to sleep.” § 87(2)(b)’s brother, § 87(2)(b) who was upstairs, shouted to him that § 87(2)(b) was being arrested. § 87(2)(b) thought his brother was joking, but his brother then repeated the comment. § 87(2)(b) yelled upstairs for them to come down. § 87(2)(b) is disabled and unable to walk up stairs.

Five minutes later, a plainclothes officer (identified by the investigation as Det. Daniel Guida) came down the stairs with § 87(2)(b) in handcuffs. While § 87(2)(b) was being brought downstairs, he stated that he wanted his lawyer, and his father reiterated this to Det. Guida. § 87(2)(b) described Det. Guida as a white male who was 5’8”, 200 lbs. (stocky), approximately 35 years old, and had light hair. He was in plainclothes and had a brown holster.

§ 87(2)(b) asked Det. Guida to identify himself, and asked him for his name and shield number. He also asked him to explain what was going on and tell him what command he was with. Det. Guida ignored him. Det. Guida had his shield on a chain that was twisted around his neck, and § 87(2)(b) thought it was too shiny, too small, and it did not look authentic. Det. Guida did not have a radio, but had a gun in a holster. § 87(2)(b) stated that Det. Guida could not have seen § 87(2)(b) go upstairs in his home because all of his windows are blocked. § 87(2)(b) did not see § 87(2)(b) or Det. Guida enter his home.

§ 87(2)(b) continued asking Det. Guida questions, but the officer did not answer him and turned away. § 87(2)(b) attempted to look closer at Det. Guida’s shield, but he covered it with his hand three to four times. § 87(2)(b) continued to ask Det. Guida what precinct he was taking his son to and Det. Guida told him that he did not know. § 87(2)(b) grew louder, and leaned towards Det. Guida. When he leaned towards him, they were about three feet apart. § 87(2)(b) told Det. Guida, “Don’t move a fucking inch until you tell me your name.” § 87(2)(b) asked Det. Guida to identify himself and his command at least six times and that he asked for his name 3-4 times. Eventually, Det. Guida stated that his name was “Decker.” § 87(2)(b) stated that Det. Guida ignored all of his other questions.

While they were interacting, § 87(2)(b) was leaning against a wall and Det. Guida and § 87(2)(b) were on the stairs. § 87(2)(b) stated that he was not blocking Det. Guida and his son, they could have left the building, and he would have been unable to stop them.

§ 87(2)(b) said that he was going to call the police to confirm that Det. Guida was an actual officer and went back into his room to get his phone. When he returned to the stairs 30 seconds later, his son and the officer were gone. § 87(2)(b) went outside of his building and looked up and down his street for signs of his son and Det. Guida, but he did not see them. § 87(2)(b) did not see any other officers or any vehicles on scene. The entire incident lasted approximately 10-15 minutes.

At approximately 9:15 p.m., an unidentified officer from the 62nd Precinct called § 87(2)(b) and told him that his son was there, but that he was being moved to Central Booking. § 87(2)(b) was given a phone number for Central Booking, but it did not work.

§ 87(2)(b) was later informed that § 87(2)(b) was arrested for being in possession of a bong with residue in it that Det. Guida found in a room upstairs in his home while § 87(2)(b) was outside. § 87(2)(b) stated that the room upstairs is where his son and several friends usually hang out and watch TV/play video games. § 87(2)(b) acknowledged that § 87(2)(b) had recently been buying drugs.

§ 87(2)(b) is bi-polar and manic-depressive and he did not come downstairs during the incident. § 87(2)(b)'s other son, § 87(2)(b) was home during the incident, but also did not come downstairs.

Attempts to Contact § 87(2)(b) and § 87(2)(b)

On March 19, 2014, the undersigned called § 87(2)(b) and left a voicemail. § 87(2)(b) immediately returned the call, and stated that § 87(2)(b)'s friend (who he was hanging out with at the beginning of/during the incident, identified by the investigation as § 87(2)(b) had recently died, and that § 87(2)(b) was in no condition to provide a statement. Thus, the investigation could not contact § 87(2)(b). The undersigned stated to § 87(2)(b) that the CCRB would try to get in touch with § 87(2)(b) in the future. In lieu of calling, the undersigned sent § 87(2)(b) letters on May 30, 2014, June 27, 2014, and July 25, 2014. As of October 6, 2014, he had not responded, and none of the letters have been returned by the USPS. On August 22, 2014, and August 29, 2014, the undersigned called § 87(2)(b) and § 87(2)(b) and left voicemails. On July 25, 2014, July 31, 2014, and August 25, 2014, the undersigned sent letters to § 87(2)(b) and § 87(2)(b). As of October 6, 2014, neither individual has responded and none of the letters have been returned by the USPS.

NYPD Statements:

Subject Officer: DET. DANIEL GUIDA

- § 87(2)(b) old on the date of the incident, Det. Guida is a white male who is 6'0", 275 lbs., with brown hair, and blue eyes.
- On the date of the incident, Det. Guida worked from 2:27 p.m. to 11:00 p.m. He was assigned to narcotics enforcement with Sgt. Clifford Strong. The officers were in plainclothes and were assigned to an unmarked grey Dodge minivan (#§ 87(2)(e), § 87(2)(f)).

Memo Book: Det. Guida's memo book (encl. 8A-8D) notes that 6:05 p.m., he conducted observation on § 87(2)(b) and § 87(2)(b) in Brooklyn. At 6:15 p.m., he had four arrests in regards to the observation: § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b). The officers observed § 87(2)(b) and § 87(2)(b) in front of § 87(2)(b) exchange U.S. currency with § 87(2)(b) for a clear bag containing marijuana. Sgt. Strong apprehended § 87(2)(b) and § 87(2)(b). § 87(2)(b) went inside § 87(2)(b) and Det. Guida followed him inside. The door to the location was white and wooden, and was unlocked. The door opened inward. § 87(2)(b) went to the second floor front bedroom. § 87(2)(b)

§ 87(2)(b) was in the bedroom and there was a green bong, a scale, and ziplock bags in plain sight on a dresser. § 87(2)(b) stated, “We were just smoking weed.” § 87(2)(b) had \$544 on him. § 87(2)(b) lived at the location and stated that it was his bedroom and his jacket was on the bed. At 7:00 p.m., the officers loaded the prisoners into a transport van from the 60th Precinct. The prisoners were secured on steps until the van arrived.

Arrest Reports for § 87(2)(b) **and** § 87(2)(b)
§ 87(2)(a) 160.50

§ 87(2)(a) 160.50

CCRB Statement

On September 19, 2014, Det. Daniel Guida was interviewed at the CCRB (encl. 11A-11C). His statement is summarized below.

On November 12, 2013, at approximately 6:05 p.m., Det. Guida and Sgt. Clifford Strong were driving on § 87(2)(b), in between § 87(2)(b) and § 87(2)(b) in Brooklyn. The officers were in an unmarked grey Dodge minivan (# § 87(2)(e), § 87(2)(f)). The officers were on the street for narcotics observation because it is a chronic, drug-prone location. Det. Guida said that he had made multiple arrests in the area, and that he often goes there for narcotics observation. Det. Guida stated that at the time of the incident, it was starting to get a little dark out.

As the officers drove down the street, they observed two males (§ 87(2)(b) and § 87(2)(b)) on the sidewalk on the middle of the east side of the street. The officers pulled up a car-length behind them and double-parked for observation. The officers’ vehicle was closer to the § 87(2)(b) side of the block.

One of the two males was on his phone making frequent phone calls and pacing back and forth. Approximately five to ten minutes later, § 87(2)(b) came from the north side of the street (the direction of the incident location), crossed in front of the officers’ vehicle, and approached the two men.

§ 87(2)(e), § 87(2)(f), § 87(2)(b)

One of the two men handed § 87(2)(b) a sum of currency, and § 87(2)(b) gave the man a large, clear ziplock bag filled with smaller ziplock bags that contained a leafy green substance. Det. Guida stated that he recognized the leaves to be marijuana from his training. § 87(2)(b) then walked away from § 87(2)(b) and § 87(2)(b) and back towards § 87(2)(b). The officers pulled their vehicle parallel to § 87(2)(b) and § 87(2)(b). They decided that Sgt. Strong would go after those two, and Det. Guida would get § 87(2)(b). Sgt. Strong exited the vehicle and approached § 87(2)(b) and § 87(2)(b).

Det. Guida drove his vehicle up the street toward § 87(2)(b). § 87(2)(b) was walking quickly, and then saw the officers and sped up. He approached § 87(2)(b) and ran inside and closed the door. Det. Guida immediately parked his vehicle in front of the house and followed after § 87(2)(b). Det. Guida entered the house approximately five seconds after § 87(2)(b). The door was unlocked when Det. Guida opened it.

When Det. Guida opened the door, he saw § 87(2)(b) on the stairs going up to the second floor. § 87(2)(b) then made a left turn. Det. Guida followed him up the stairs, which entered into a living room. There was an older male (later identified to Det. Guida as § 87(2)(b) § 87(2)(b)'s uncle, § 87(2)(b) sitting in a chair in the room. Det. Guida identified himself as police and had his shield out around his neck. Det. Guida told the man to stay where he was, and then made the same left turn that § 87(2)(b) had made. Det. Guida did not remember what, if anything, the man in the chair said. Neither Det. Guida nor § 87(2)(b) said anything to the other during the initial pursuit.

Det. Guida made the left turn and entered into a bedroom. Det. Guida did not remember if there was a door to the bedroom, but said that if there was a door, it was open. In the bedroom, Det. Guida saw § 87(2)(b) standing and § 87(2)(b) sitting on a bed. Det. Guida told the men not to move. He did not remember if they said anything to him. Det. Guida observed a bong, a digital scale, and a ziplock bag full of cocaine on a dresser. § 87(2)(b) asked what was going on and said, "We were just smoking weed." Det. Guida did not see Armanda § 87(2)(b) outside the incident location prior to the incident. Det. Guida explained that he had followed after § 87(2)(b) but now they were both under arrest because of the drug paraphernalia. Det. Guida said that he did not search anywhere in the incident location, other than looking at an already open drawer in § 87(2)(b)'s bedroom.

Det. Guida placed both individuals under arrest, and then radio'd Sgt. Strong to check on him. Sgt. Strong did not respond, so Det. Guida brought both individuals downstairs and outside. Det. Guida said that the man in the chair either identified himself as § 87(2)(b)'s uncle, or § 87(2)(b) told him he was his uncle at some point. Det. Guida said that § 87(2)(b)'s brother came out of a back bedroom at some point, and he explained the situation to § 87(2)(b)'s family members. Det. Guida stated that nobody stood in front of the staircase and/or blocked the exit of the house as he was leaving. Det. Guida was inside the house for approximately five minutes.

Det. Guida joined Sgt. Strong on a stoop across the street with the two males that Sgt. Strong had arrested. Sgt. Strong had also recovered the drugs from them. The officers then radio'd for a prisoner van, and began filling out pedigree information for the arrested individuals. Approximately 10 to 20 minutes later, the prisoner van arrived, and the officers transported the arrested individuals back to the stationhouse for processing.

Det. Guida stated that he remembered that § 87(2)(b)'s father § 87(2)(b) lived on the § 87(2)(b) floor of the house and had a long grey beard. Det. Guida said that § 87(2)(b) came out and asked what was happening and where his son was being taken. Det. Guida stated that § 87(2)(b) came to the doorway of his home while the officers were across the street on the stoop. Det. Guida said that he stood on the sidewalk when he talked to § 87(2)(b) and that he told him that his son was being brought to the precinct. Det. Guida said the conversation with § 87(2)(b) was brief, and he did not remember the specifics of it. Det. Guida said that he had no interaction with § 87(2)(b) inside the house. Det. Guida said § 87(2)(b) came outside at least 10 minutes after § 87(2)(b) was brought outside. Det. Guida said that § 87(2)(b) was relatively calm, but he was slightly agitated that his son was being arrested. Det. Guida spoke to § 87(2)(b) for less than a minute.

Det. Guida did not remember if § 87(2)(b) asked for his name and/or shield number. Det. Guida said that he had his shield out around his neck during the incident and it was clearly visible. Det. Guida did not identify himself as "Decker" at any point during the incident, and said that that name did not mean anything to him. Det. Guida said that he was the only officer to enter the incident location. He did not block it from view at any point. Det. Guida did not refuse to identify himself to anyone on scene during the incident.

NYPD Documents

SPRINT Report

The SPRINT Report #D13111220971 for the incident (encl. 14D) is from 9:01 p.m. on the night of the incident, and that unit 62SP45 responded to a 75F (visibility patrol: family/home visit).

911/Radio Run CD

The 911/Radio Run CD (encl. 13A-13B) includes three 911 calls from § 87(2)(b) § 87(2)(g)

§ 87(2)(b) said that a man who identified himself as a police officer took his son from his home. He described the officer as a white male who was 5'8", 180 lbs., wearing an army fatigue jacket with a backwards, small shield and a holstered firearm. The officer said his name was "Decker" and said that he did not know where he was taking § 87(2)(b)'s son, but that he was arresting him for a bong. The officer also said that there had been a burglary call to their location § 87(2)(b)'s home). § 87(2)(b) asked the officer what his command was but the officer did not tell him. During the second 911 call, RMP #5069 drove by § 87(2)(b) on the street, but it did not slow down/stop despite him shouting at it. On the third call, the operator told § 87(2)(b) that a sergeant would respond to the scene.

During the radio run calls, the officers mentioned a Narcotics unit being involved at the location, and a 75F was mentioned.

Tactical Plan

The Tactical Plan (encl. 18A) pertaining to the incident notes that Det. Guida was working with Sgt. Strong as the team leader. The plan does not list the incident location or § 87(2)(b)'s name. None of the locations listed on the plan are particularly close to the incident location.

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- On October 7, 2014, a FOIL request was submitted for a Notice of Claim with the City of New York with regard to the incident (encl. 25A-25B). A response has not yet been received.

Civilian's CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 2A).

Subject Officer's CCRB History

- Det. Guida has been a member of the service for eight years and there are no substantiated CCRB allegations against him (encl. 1A).

Conclusion

Identification of Subject Officer

Det. Guida was listed on § 87(2)(b)'s arrest report, and he acknowledged being the only officer to enter the incident location. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A—Abuse of Authority: Det. Daniel Guida entered and searched § 87(2)(b) in Brooklyn.

It is undisputed that Det. Guida entered § 87(2)(b) in Brooklyn, and that he was the only officer present. § 87(2)(g)

§ 87(2)(g)

Allegation B—Abuse of Authority: Det. Daniel Guida refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) stated that he asked Det. Guida to identify himself, and asked him for his name and shield number. Det. Guida ignored him. § 87(2)(b) continued asking Det.

Guida questions, but the officer did not answer him and turned away. § 87(2)(b) attempted to look closer at Det. Guida's shield, but he covered it with his hand three to four times. § 87(2)(b) asked Det. Guida to identify himself and his command at least six times and that he asked for his name 3-4 times. Eventually, Det. Guida stated that his name was "Decker." § 87(2)(b) stated that Det. Guida ignored all of his other questions.

Det. Guida stated that he did not remember if § 87(2)(b) asked for his name and/or shield number. Det. Guida said that he had his shield out around his neck during the incident and it was clearly visible. Det. Guida did not identify himself as "Decker" at any point during the incident, and said that that name did not mean anything to him. Det. Guida did not block his shield from view at any point. Det. Guida did not refuse to identify himself to anyone on scene during the incident.

§ 87(2)(g)

_____.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date